KUIMBA SHIRI (PRIVATE) LIMITED
and
TRUSTEES, ZIMBABWE WILDLIFE AFRICA TRUST
versus
CITY OF HARARE
and
ENVIRONMEMNTAL MANAGEMENT AGENCY (EMA)
and
ZIMBABWE NATIONAL WATER AUTHORITY
and
ZIMBABWE PARKS AND WILDLIFE MANAGEMENT AUTHORITY

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE; 18 March 2026

Opposed Matter

T Sibanda, for the applicants
T Chamisa, for the first respondent
B Mahuni, for the third respondent

MUNANGATI- MANONGWA J: This is a court application wherein the applicants seek a declaratory order that the first respondent's discharge of effluent and other pollutants into the Manyame catchment area and Lake Chivero contravenes the Ramsar Convention, 1971, the Constitution of Zimbabwe, the Environmental Management Act [*Chapter 20:27*], the *Water Act* [*Chapter 20:24*] and the Parks and Wildlife Act [*Chapter 20:14*], and constitutes a health, environmental and wildlife hazard. The applicants further seek an order compelling the second to fourth respondents to investigate the extent of environmental damage and publish quarterly progress reports, a mitigation and rehabilitation programme for Lake Chivero, and compensatory damages of USD 86,240.00 to the first applicant for loss of profits for the 2024–2025 financial year.

The first applicant, through its director, avers that it operates a bird park and ecotourism resort on the shores of Lake Chivero established in 1994, deriving income from a restaurant, bar, accommodation, camping, boat-based wildlife tours and white rhino viewing as a principal

tourist activity. The first applicant produced financial statements reflecting a net profit of USD 107,297 for the year ended 31 December 2024, contrasted with a net loss of USD 21,057 for the first two months of 2025, a reversal directly attributed to the pollution crisis. The second applicant filed its founding affidavit fully associating itself with the first applicant's case.

The first applicant alleges that the second respondent accused the first respondent of discharging in excess of 250 million litres of untreated sewage into Lake Chivero daily, issuing it seven environmental protection orders between 2021 and 2025. The first applicant further alleges that before a Commission of Inquiry in February 2025, the first respondent's Acting Town Clerk publicly admitted that the first respondent is 'contributing quite significantly to the basin through sewage,' and that the first respondent's own Wastewater Masterplan confirms that over 60% of its 5,000 km sewer network has exceeded its design lifespan, treatment plants operate at roughly 30% efficiency and approximately 120 megalitres per day of untreated effluent bypasses treatment entirely, all of which the first respondent does not deny. The first applicant additionally alleges that in December 2024 a cyanobacterial bloom contaminated the lake, resulting in the deaths of four rhinos, three zebras, four wildebeests, four fish eagles and over 1,000 fish, a position confirmed by the fourth respondent, which also closed the lake to the public, directly causing the first applicant's financial losses.

The first and third respondents filed notices of opposition. It is noted that the third respondent filed its notice out of time and was barred, however the bar was subsequently lifted. The applicants raised points *in limine* against both. With respect to the first respondent, Mr *Sibanda* contends that its board resolution bears no signatures of the mayor, chairman, councillors or town clerk and was not authenticated in accordance with sections 136 and 317 of the Urban Councils Act [*Chapter 29:15*], and further that the resolution is dated 27 February 2025 five months before proceedings were filed on 19 June 2025 and therefore could not have authorised this specific litigation. In response, Mr *Chamisa* contends that section 136(2) of the Urban Councils Act permits the council to lawfully assign authority to the town clerk. Concerning the third respondent, Mr *Sibanda* contends that the purported certified copy of its board resolution discloses no original resolution, identifies no certifying official, bears no letterhead or stamp, and records a meeting of 25 March 2021over four years before these proceedings with the board members who passed it having vacated office under the three-year

tenure in section 8 of the Zimbabwe National Water Authority Act [*Chapter 20:25*]. In response, Ms *Mahuni* maintains that the resolution is a valid standing authorisation never revoked, that the board was re-appointed in 2023, and that a government taskforce chaired by Prof. Hodson Makurira had already investigated the contamination and reported to Cabinet, rendering the relief sought against the third respondent redundant.

ISSUES FOR DETERMINATION

1. Whether or not the first respondent's notice of opposition is valid?
2. Whether or not the third respondent's notice of opposition is valid?

ANALYSIS

Whether or not the first respondent's notice of opposition is valid

Mr *Sibanda* submits that the purported board resolution relied upon by the first respondent is invalid and of no probative force. This court takes cognisance of the provision of section 317 of the Urban Councils Act [*Chapter 29:15*] which reads,

"**317. Authentication or execution of orders, *etc*.**

Every order, notice or other document requiring authentication or execution by a Council shall be sufficiently authenticated or executed if it is—

(*a*) signed by the mayor or chairman of the Council or the town clerk or some other employee duly authorized by the Council, in the presence of such witnesses as may be required by law; or

(*b*) authenticated or executed in the presence of the witnesses referred to in paragraph (a) in the manner determined in the standing orders of the Council.

It should be noted therefore that the resolution that the first respondent attached contains no signatures of the mayor, councillors, chairman or town clerk, and there is no evidence of authentication or attestation in the manner the statute mandates. The document *prima facie* fails to satisfy the statutory requisites and cannot be said to properly confer authority on the deponent attesting to it.

The applicants further submit that the absence of signatures from the councillors who purportedly moved and seconded the motion underscores the resolution's procedural defectiveness. It should be noted that the highlighted provision of the Urban Councils Act is clear: formal endorsement by the prescribed office-bearers and compliance with standing-order formalities are not just mere conditions but mandatory conditions of validity. A resolution lacking those features is a nullity and cannot be relied upon to establish *locus standi*, authority to represent the council, or to underpin any substantive act predicated on the alleged resolution.

Moreover, the chronological inconsistency between the resolution's ostensible date, 27 February 2025, and the Registrar's authorisation of the present proceedings on 19 June 2025 further exposes the document as unreliable and unacceptable as proof of authority. It should be noted that a board resolution cannot empower future resolutions.

Equally the contention by the first respondent's counsel that authority may be assigned to the town clerk and that no statutory provision compels signing by the mayor and councillors is without merit given the circumstances of this case. Section 136(2) reads,

136. Functions of town clerk

> "For the purposes of subsection 1, the town clerk, in addition to any other duties that may be assigned to him by the Council, shall (*b*) where so authorised by the Council, sign orders, notices, or any document requiring authentication or execution on behalf of the Council."

It should be noted that even if the town clerk may be authorised to act in certain circumstances, the first respondent nonetheless bears the evidential burden of demonstrating a lawful delegation of authority and the existence of a properly executed and authenticated instrument evidencing such delegation. In *Cuthbert Elakana Dube* v *Premier Service Medical Aid Society & Anor* 19-SC-073; 2019 (3) ZLR 589 (S), the court remarked at para 44:-

> "A person who represents a legal entity, when challenged, must show that he is duly authorized to represent the entity. His mere claim that by virtue of the position he holds in such an entity, he is duly authorized to represent the entity is not sufficient. He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such proof is necessary only in those cases where the authority of the deponent is put in issue. This represents the current state of the law in this country."

In this case, absent documentary proof of delegation or a validly executed resolution meeting the requirements of sections 136 and 317, and the absence of signatures and

authentication makes it difficult for one to believe that the board has given such person the authority. In that regard, the court finds that there is no valid authorisation.

Whether or not the third respondent's notice of opposition is valid

It should be noted that there is so much material chronological inconsistency in the board resolution presented by the third respondent. The certified copy purports to record minutes of a meeting dated 25 March 2021, yet the present proceedings were filed and authorised much later in 2025, that is unacceptable. In *Arosume Property Development (Private) Limited* v *Farai Olivia Mashonganyika & Another* HH143/25, the court held as follows:

> "It is, therefore, trite that a board resolution must authorise the specific litigation involving the parties before the court. One which purports to authorise all litigation by the company in the future cannot meet the requirement of specificity and is, therefore, fatally defective and a nullity."

It should also be noted that ZINWA's Board members were appointed in 2019 for a four-year term in terms of the Public Entities Corporate Governance Act [*Chapter 10:31*]. In 2021 they passed a Board Resolution giving the corporate secretary and legal advisor power to represent them in every legal matter. That on its own is wrong legally as shown by the Arosume case *supra*. Further, the Board was dissolved in 2023 and was re- appointed with the same members. The authority they gave before being dissolved does not remain in force when they are re-appointed. Hence, the 2021 Board resolution cannot be relied on in this matter.

The Act prescribes a four-year tenure and accordingly, the Board resolution adopted in 2021 was passed while the appointees were still in office, but the application currently before this Court was filed in 2025 when that resolution had already ceased to be valid. The third respondent's contention that the Board was re-appointed in 2023 and that the 2021 resolution remains in force, cannot be sustained.

Accordingly, the court makes the following order: -

1. All the points *in limine* are hereby upheld.

2. The first and third respondents' notice of oppositions are invalid.

3. The matter shall thereafter proceed as unopposed.

4. Respondents to pay costs.

MUNANGATI- MANONGWA J……

Chadyiwa and Co, applicant's legal practitioners
Richard Legal Services, first respondent's legal practitioners
Muvingi and Mugadza, third respondent's legal practitioners